

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
LUIS MONSANTO,

Plaintiff

-against-

THE CITY OF NEW YORK, POLICE OFFICER
WILL RODRIGUEZ, Shield No. 19485, (Individually
and in his official capacity) POLICE OFFICER
LAUREN MORIARTY, Shield No. 14377 (Individually
and in her official capacity), SARGENT DANNY
AGUILAR, Shield No. 2496 (Individually and in his
official capacity) POLICE OFFICER JOHN
BATULE, Shield No. 25156 (Individually and in his
official capacity), POLICE OFFICER EDWARD
MURRAY, Shield No. 2512 (Individually and
in his official capacity), POLICE OFFICER JUAN
PERALTA, Shield No. 21062 (Individually and in
his official capacity) and POLICE OFFICERS
"JOHN/JANE DOE" 1-10 (Individually and in their
official capacity) ("JOHN/JANE DOE" being
fictitious names as the true names are
presently unknown).

Defendants.

-----X
TO THE ABOVE NAMED DEFENDANTS:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to Answer the Verified Complaint of the Plaintiff herein, that is being served on you, and to serve a copy of your Answer to the Verified Complaint upon Plaintiff's attorneys at HECHT & HECHT, LLP, 910 Grand Concourse, Suite 1C, Bronx, New York 10451, within twenty (20) days after service of this Summons upon you, exclusive of the day of service or, within (30) days after service is complete, if the Summons is not delivered personally to you within the State of New York. You must also file your Answer with the Clerk of this Court within a reasonable period of time after service.

YOU ARE HEREBY NOTIFIED THAT should you fail to Answer, a judgment will be entered against you by default for the relief demanded in the Verified Complaint.

Dated: September 1, 2022
Bronx, New York

Index No.:

Dated purchased:

SUMMONS

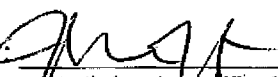
Plaintiffs designates
BRONX COUNTY
as the place for trial

The basis of Venue is
the location where the
incident occurred

Jury Trial Demanded

Plaintiff resides at:
1269 Hoe Avenue
Bronx, NY 10459

Yours etc.,
HECHT & HECHT, LLP

By 
Michael W. Hecht, Esq.

Attorneys for Plaintiff
910 Grand Concourse, Suite 1C
Bronx, New York 10451
(212) 226-2400
(718) 715-0500

TO:

SYLVIA HINDS-RADIX
Corporation Counsel of The City Of New York
100 Church Street
New York, New York 10007-2601

P.O. WILL RODRIGUEZ
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. LAUREN MORIARTY
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. JOHN BATULE
c/o New York City Police Department - 42nd Precinct
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Bronx, New York 10451

SGT. DANNY AGUILAR
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. EDWARD MURRAY
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
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P.O. JUAN PERALTA
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY-----
LUIS MONSANTO,

Plaintiff,

-against-

Index No.:

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER WILL RODRIGUEZ, Shield No. 19485, (Individually and in his official capacity) POLICE OFFICER LAUREN MORIARTY, Shield No.14377 (Individually and in her official capacity), SARGENT DANNY AGUILAR, Shield No. 2496 (Individually and in his official capacity) POLICE OFFICER JOHN BATULE, Shield No. 25156 (Individually and in his official capacity), POLICE OFFICER EDWARD MURRAY, Shield No. 2512 (Individually and in his official capacity), POLICE OFFICER JUAN PERALTA, Shield No. 21062 (Individually and in his official capacity) and POLICE OFFICERS "JOHN/JANE DOE" 1-10 (Individually and in their official capacity) ("JOHN/JANE DOE" being fictitious names as the true names are presently unknown).

Jury Trial
DemandedDefendants.

The plaintiff, by his attorneys HECHT & HECHT, LLP, sets forth the following, upon information and belief, as and for his Verified Complaint:

1. That the plaintiff LUIS MONSANTO (hereinafter "MONSANTO") was and still is a resident of The City and State of New York, Bronx County.
2. That the plaintiff MONSANTO was and still is a citizen of the United States of America.
3. That plaintiff MONSANTO is a Hispanic/Latino male.

4. That the defendant THE CITY OF NEW YORK (hereinafter "CITY") was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

5. That the defendant CITY maintains a police department (hereinafter NYPD) which CITY has duly authorized to perform all functions of a police department acting under the direction and supervision of defendant CITY.

6. That on March 6, 2022, the defendant POLICE OFFICER WILL RODRIGUEZ, Shield No. 19485, (hereinafter "P.O. RODRIGUEZ") was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY.

7. That on March 6, 2022, the defendant POLICE OFFICER LAUREN MORIARTY, Shield No. 14377, (hereinafter "P.O. MORIARTY") was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY.

8. That on March 6, 2022, the defendant SARGENT DANNY AGUILAR, Shield No. 2496, (hereinafter "SGT. AGUILAR") was a duly sworn New York City Police Officer and Sargent, acting under the supervision and control of NYPD and CITY.

9. That on March 6, 2022, the defendant POLICE OFFICER JOHN BATULE, Shield No. 25156, (hereinafter "P.O. BATULE") was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY.

10. That on March 6, 2022, the defendant POLICE OFFICER EDWARD MURRAY, Shield No. 2512, (hereinafter "P.O. MURRAY") was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY.

11. That on March 6, 2022, the defendant POLICE OFFICER JUAN PERALTA, Shield No. 21062, (hereinafter P.O. PERALTA") was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY.

12. That on March 6, 2022, the defendant POLICE OFFICERS "JOHN/JANE DOE" 1-10 were duly sworn New York City Police Officers and/or senior individuals within NYPD, acting under the supervision and control of NYPD and CITY.

13. That defendants P.O. RODRIGUEZ, P.O. MORIARTY, SGT. AGUILAR, P.O. BATULE, SGT. AGUILAR, P.O. MURRAY, P.O. PERALTA and the JOHN/JANE DOE defendants are referred to collectively herein as "individual defendants".

14. That at all times hereinafter mentioned, the defendants were all acting under color of law, statute, ordinance, rule, regulation, custom and/or usage, of State law.

15. That at all times hereinafter mentioned the defendants' conduct deprived the plaintiff of rights, privileges and/or immunities guaranteed under the Laws and Codes of The City of New York, as well as the Laws of The State of New York, The U.S. Constitution and/or Federal Law.

16. That at all times hereinafter mentioned, all of the acts of the individual defendants were done while acting individually and as New York City Police officers and/or supervisor(s)

17. That said conduct was within the scope of the individual defendants' employment by defendant CITY and NYPD.

18. That the plaintiff has complied with GML 50-e by serving Notice of Claim on the defendant CITY on May 31, 2022, and a Further Notice of Claim on June 1, 2022, both within 90 days of the statutory date of accrual.

19. That plaintiff was ready and willing to submit to a hearing pursuant to GML § 50-h however, by correspondence dated July 15, 2022, CITY expressly waived its right to a hearing pursuant to GML 50-h in this matter. Copy of said correspondence attached hereto.

20. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereon has been neglected and/or refused.

21. That this action was commenced within one (1) year and ninety (90) days from date that the incident complained of.

FACTS

22. That the incident complained of occurred on March 6, 2022, at or about the intersection of Boston Road and East 165th Street, Bronx County, City and State of New York.

23. That on March 6, 2022, at or about the time that the incident complained of occurred, plaintiff MONSANTO was the operator of a motor vehicle in Bronx County, City and State of New York.

24. That on March 6, 2022, at or about the time that the incident complained of occurred, plaintiff MONSANTO was operating a motor vehicle at or about Boston Road and East 165th Street, Bronx County, City and State of New York.

25. That while plaintiff MONSANTO was operating said motor vehicle at or about Boston Road and East 165th Street, Bronx County, City and State of New York, he

caused said motor vehicle to stop for, upon information and belief, a red traffic signal, while on the roadway.

26. That while the motor vehicle being operated by plaintiff MONSANTO remained stopped, two unmarked NYPD vehicles, approached MONSANTO's stopped vehicle.

27. That the NYPD vehicles approached MONSANTO's stopped vehicle without warning lights, sirens or any other indication that they were unmarked NYPD vehicles.

28. That neither MONSANTO, nor any occupant of the motor vehicle that he was operating had committed any crime.

29. That there were no weapons of any nature in the vehicle operated by plaintiff MONSANTO.

30. That there were no illegal substances of any nature in the vehicle operated by plaintiff MONSANTO.

31. That while plaintiff's MONSANTO's vehicle was stopped, one of the unmarked NYPD vehicles rapidly moved in front of the plaintiff's motor vehicle, blocking its path.

32. That said unmarked NYPD vehicle did not have any police warning light(s) illuminated or any other warning device activated, until after it was passing the plaintiff's stopped vehicle.

33. That after the unmarked NYPD vehicle moved in front of the plaintiff's stopped vehicle, plaintiff reversed his previously stopped vehicle.

34. After the plaintiff began to reverse his motor vehicle, the second unmarked NYPD vehicle pulled in behind the plaintiff, also blocking its path.

35. That the plaintiff attempted to then move his vehicle in a forward direction and to the left.

36. That prior to that time, several New York City Police officers exited one or both of the unmarked police vehicle(s) and assumed a threatening presence at the scene with their firearms drawn, displayed, and ready for discharge.

37. That no police officer was in the direct path as plaintiff's vehicle proceeded in a forward direction.

38. That by means of physical force and/or a show of authority with two NYPD vehicles blocking the front and rear path of the plaintiff's vehicle and multiple police officers assuming threatening presence at the scene with their firearms drawn and displayed and ready for discharge, plaintiff MONSANTO's freedom of movement was restrained.

39. That none of the individual defendants were in any physical danger due to the forward movement of the plaintiff's motor vehicle.

40. That defendants P.O. RODRIGUEZ and/or P.O. MORIARTY discharged their firearms several times, and, upon information and belief, several of the bullets struck plaintiff MONSANTO.

41. That defendants P.O. RODRIGUEZ and/or P.O. MORIARTY both intended to take the action that caused restraint and control of the plaintiff and to target the plaintiff MONSANTO specifically.

42. That the defendants P.O. RODRIGUEZ and/or P.O. MORIARTY both intended to discharge their firearms and shoot the plaintiff MONSANTO.

43. That there was a seizure of the Plaintiff under the United States Constitution¹ and other applicable law.

44. That the seizure of the Plaintiff was unreasonable and undertaken with the use of unnecessary and excessive force.

45. That the type of force used by NYPD Officers in this case, the shooting into a moving vehicle, when there is no weapon present in the moving vehicle was, and still is, expressly prohibited by The New York City Police Officer Patrol Guide.

46. That, irrespective of The New York City Police Officer Patrol Guide express prohibition of same, at the time that the subject incident occurred, it was defendant CITY and NYPD custom and/or policy to permit, allow and/or encourage police officers to shoot into moving vehicles, when no weapons were in the moving vehicle to allegedly combat terrorism.

47. That said custom and/or policy was a formal policy of the defendant CITY officially endorsed by defendant CITY and its Mayor.

48. That this policy of CITY and NYPD, is evidenced by CITY's Mayor Adams' comment shortly after the subject incident, in an attempt to justify the NYPD's shooting of the plaintiff while he was in a moving vehicle, indicating:

[I]n the days where vehicles are used in terrorist attacks to drive into crowds, we're dealing with a different moment in policing.

<https://www.cbsnews.com/newyork/news/luis-monsanto-bronx-nypd-shooting/>

¹ The terms "Constitution" and "Constitutional" as used herein, refers to The United States Constitution and the Amendments thereto, unless otherwise stated.

49. That neither the Plaintiff, nor any occupant of the vehicle that he was operating, was a "terrorist" and there was no cause or reason for anyone, including the individual defendants, to believe or conclude otherwise.

50. That neither the plaintiff, nor any occupant of the vehicle that he was operating, used or threatened any type of force at or against any police officer at or about the location where the incident complained of occurred.

51. That the level of force used by the defendants was objectively unreasonable and excessive and in violation of the plaintiff's rights.

52. That upon information and belief, the plaintiff was not aware of the nature of the unmarked vehicles, nor that they were Police vehicles, as there were no police warning lights illuminated on the police vehicles until immediately before the shooting incident complained of herein occurred.

53. That defendants P.O. BATULE, SGT. AGUILAR, P.O. MURRAY and/or P.O. PERALTA, who were present at the scene of the incident complained of, at the time it occurred and prior thereto, failed to intervene and stop the use of excessive force by P.O. RODRIGUEZ and/or P.O. MORIARTY.

54. That all acts of the individual defendants complained of herein, were done in their capacity of NYPD Officers with all actual and/or apparent authority to do so.

55. That defendant SGT. AGUILAR, as supervisor on scene, had knowledge of the facts and circumstances and is therefore responsible for the actions of P.O. RODRIGUEZ and/or P.O. MORIARTY in shooting the plaintiff, use of excessive force and the violation of his federal rights and liable for his injuries caused by same.

56. That the defendants' seizure of the Plaintiff, their use of unreasonable and excessive force and the violation of the plaintiff's rights were the direct cause of the plaintiff MONSANTO's serious and permanent personal injuries.

57. That the defendants' conduct in failing to timely illuminate their lights on the unmarked police vehicles and their failure to use sirens and/or loudspeaker(s) escalated the subject incident and with the result that the defendants' used unreasonable, unjustified and excessive force and shooting the plaintiff in the head.

58. That the plaintiff MONSANTO suffered serious and permanent personal injuries as a result of being shot by the NYPD Officers as set forth herein.

***AS AND FOR A FIRST CAUSE OF ACTION
FOR THE VIOLATION OF PLAINTIFF'S RIGHTS UNDER
NEW YORK CITY ADMINISTRATIVE CODE,
TITLE 8 - CIVIL RIGHTS: CHAPTER 8, §8-801 - §8-807, INCLUSIVE***

59. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above and below in the "Second Cause of Action", as if fully set forth again herein.

60. That the plaintiff MONSANTO is a "person aggrieved".

61. That defendants P.O. RODRIGUEZ, P.O. MORIARTY, SGT. AGUILAR, P.O. BATULE, P.O. MURRAY, P.O. PERALTA and JOHN/JANE DOE" 1-10 (the "individual defendants"), are "covered individual[s]".

62. That the plaintiff, at the time of the happening of the incident complained of occurred, had the protected rights against unreasonable searches and seizures, and to be secure against the use of excessive force by covered individuals such as the individual defendants pursuant to N.Y.C. Administrative Code and other applicable law.

63. That at the time of the incident complained of, the individual defendants, who were "covered individuals", acting under color of law, ordinance, rule, regulation, custom or usage, deprived plaintiff MONSANTO of his expressly protected rights under N.Y.C. Administrative Code and other laws referred to therein, including, but not limited to, federal rights.

64. That the defendants violated New York City Administrative Code, Title 8, Civil Rights §8-802 entitled "Right of security against unreasonable search and seizure and against excessive force regardless of whether such force is used in connection with a search and seizure", in that the defendants violated the Plaintiff's rights as a natural person to be secure in his person against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

65. That the individual defendants, as "covered individuals" who, under color of any law, ordinance, rule, regulation, custom or usage, subjected or caused to be subjected, including through failure to intervene, the plaintiff to be deprived of rights created, granted or protected by New York City Administrative Code, Title 8, Civil Rights §8-802 as well as rights under the United States Constitution and applicable laws, codes, rules and/or statutes are liable to the person aggrieved, the plaintiff herein, for legal or equitable relief or any other appropriate relief. New York City Administrative Code, Title 8, §8-803(a)

66. That defendant CITY, as employer of the "covered individuals", the individual defendants herein, who, under color of any law, ordinance, rule, regulation, custom or usage, subjected or caused to be subjected, including through failure to

intervene, the plaintiff herein to be deprived of rights that created, granted or protected by New York City Administrative Code, Title 8, Civil Rights §8-802 as well as rights under the United States Constitution and applicable laws, codes, rules and/or statutes, is liable, based upon the conduct of such "covered individuals", to the person aggrieved, the plaintiff herein, for legal or equitable relief or any other appropriate relief. New York City Administrative Code, Title 8, §8-803(b)

67. That any claim of any of the individual defendants herein of qualified, or any other substantially equivalent immunity in this matter, is not a valid defense to the violation of plaintiff's rights pursuant to N.Y.C. Administrative Code, Title 8 § 8-804 entitled "Immunity not a defense".

68. Moreover, and in addition to the foregoing, the plaintiff claims that the acts of the individual defendants were not isolated acts but instead, were the result of CITY's custom, policies, usages practices, procedures and rules of defendant CITY and NYPD as stated and confirmed by Mayor Adams immediately after the happening of the incident complained of (quoted above), which was the moving force behind the violation of the plaintiff's rights.

69. That based on said policy it was foreseeable to the defendant CITY that Constitutional Rights of members of the public, such as plaintiff MONSANTO, would be violated.

70. That the conduct of the individual defendants, and in particular defendants P.O. RODRIGUEZ and P.O. MORIARTY, was reasonably foreseeable to defendant CITY based on its aforementioned custom or policy and constituted deliberate indifference to the safety, well-being and Constitutional Rights of the plaintiff.

71. That the foregoing custom, policies, usages practices, procedures and rules of defendant CITY and NYPD were the direct and proximate cause of the violations of the plaintiff's rights and physical injuries suffered by the plaintiff herein.

72. That the plaintiff claims compensatory damages based on the injuries caused by the defendants herein pursuant to the applicable section(s) of the N.Y.C. Administrative Code.

73. That the plaintiff claims punitive damages based on the foregoing pursuant to the applicable section(s) of the N.Y.C. Administrative Code.

74. The plaintiff seeks recovery of attorneys' fees and costs pursuant to the applicable section(s) of the N.Y.C. Administrative Code.

75. That by reason of the foregoing, plaintiff sustained damages and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

***AS AND FOR A SECOND CAUSE OF ACTION FOR THE
VIOLATION OF PLAINTIFF'S RIGHTS
UNDER 42 U.S.C. § 1983 AND RELATED LAW(S)***

76. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above, as if fully set forth again herein.

77. That the acts of the defendants deprived the plaintiff MONSANTO of his rights, privileges and immunities guaranteed to citizens of the United States by the United States Constitution and Amendments thereto, and were in violation of 42 U.S.C § 1983.

78. That defendants, collectively and individually, while acting under color of state law engaged in conduct which constituted a custom, usage practice or rule of the

respective municipality/authority which is forbidden by The Constitution of The United States.

EXCESSIVE FORCE

79. That the level of force used by the individual defendants, including, but not limited to defendants P.O. RODRIGUEZ or P.O. MORIARTY on the plaintiff MONSANTO, was objectively unreasonable, excessive, unjustified and in violation of the Constitutional Rights of the plaintiff.

80. That said excessive force was approved by defendant CITY and the NYPD under its policy, as stated by Mayor Adams immediately after the happening of the incident complained of, and the abandonment of the published and written policy prohibiting same, contained in The New York City Police Officer Patrol Guide.

81. That the excessive force used by the individual defendants and approved by defendant CITY violated the Plaintiff's clearly established Constitutional Rights as well as other applicable sections, laws, statutes and/or codes.

82. That at the time, and prior to the time, that they used said objectively unreasonable and excessive force on the plaintiff MONSANTO, no individual defendant was in any physical danger.

83. That defendants P.O. BATULE, SGT. AGUILAR, P.O. MURRAY, P.O. PERALTA and JOHN/JANE DOE" 1-10 had the duty to intervene to prevent the violations of plaintiff's Constitutional rights.

84. That defendants P.O. BATULE, SGT. AGUILAR, P.O. MURRAY, P.O. PERALTA and JOHN/JANE DOE" 1-10 had the opportunity to intervene to prevent the violations of plaintiff's Constitutional rights.

85. That defendants P.O. BATULE, SGT. AGUILAR, P.O. MURRAY, P.O. PERALTA and JOHN/JANE DOE" 1-10 failed to intervene to prevent the violations of plaintiff's Constitutional rights.

86. That the defendants, individually and collectively subjected the plaintiff to conduct that occurred under color of state law which deprived the plaintiff of rights, privileges, or immunities guaranteed under federal law or the U.S. Constitution.

87. That each government-official defendant, through the official's own individual actions, has violated the plaintiff's rights under the U.S. Constitution.

88. That the individual defendants have no immunity herein, qualified or otherwise, based on the objectively intended, unreasonable, and unjustifiable level of force used by the individual defendants on the plaintiff.

89. That as a result of the foregoing the plaintiff suffered serious and permanent personal injuries, including, but not limited to being shot in the head and related damage to his skull and brain and other related injuries.

DUE PROCESS

90. That the defendants conduct resulted in the deprivation of Plaintiff's rights to "life, liberty or property" without due process under The United States Constitution and other applicable sections, laws, statutes and/or codes, as their conduct herein was arbitrary and/or conscience shocking, in a Constitutional sense.

CRUEL AND UNUSUAL PUNISHMENT

91. That the defendants summarily inflicted on the plaintiff cruel and unusual punishment and violated his rights under The United States Constitution.

MUNICIPAL LIABILITY

92. That irrespective of written and published policies and procedures of defendant CITY and NYPD, contained in the New York City Police Department Patrol Guide prohibiting the type of excessive force used by the individual defendants herein², defendant CITY and NYPD adopted, permitted and/or encouraged and approved the custom and/or policy permitting the discharge of police firearms into moving vehicles where no weapons were present.

93. That defendant CITY approved, permitted and/or encouraged the foreseeable and likely violation of the plaintiff's Constitutional Rights by the NYPD in that CITY wrongly adopted a policy permitting NYPD Officers' reckless use of excessive force and discharge of firearms directed at the operator of a moving motor vehicle to stop it, in a veiled attempt to prevent terrorism, even where no evidence, proof or any suggestion of terrorism was apparent.

94. That said CITY policy, as used and followed by the individual defendants and expressly endorsed by Mayor Adams, caused the violation of the Plaintiff's civil rights.

95. That the CITY's policy permitted, encouraged and allowed NYPD officers to discharge their firearms into moving vehicles under a veil of preventing terrorism and permitted, encouraged and allowed NYPD officers to use otherwise prohibited excessive and deadly force, which was the cause of the happening of the incident complained of.

96. That the defendants individually and collectively while acting under color of state law agreed to, encouraged and permitted the pattern of unconstitutional conduct by

² Procedure Number 221-01, Prohibitions § (1)(f): Members of the service **SHALL NOT**...Discharge their firearms at or from a moving vehicle unless deadly physical force is being used against the member of the service or another person present, by means other than a moving vehicle. (Emphasis original).

the individual defendants and other similar employees of the NYPD and were directly responsible for the violation of the plaintiff's Constitutional Rights.

97. That the foregoing custom(s), polic(ies), usage(s), practice(s), procedure(s) and rule(s) of defendant CITY and NYPD constituted deliberate indifference to the safety, well-being and Constitutional Rights of the plaintiff.

98. That the foregoing custom(s), polic(ies), usage(s), practice(s), procedure(s) and rule(s) of defendant CITY and NYPD were the direct and proximate cause of the Constitutional violations and physical injuries suffered by the plaintiff herein.

99. That the defendants individually and collectively, while acting under color of state law, were directly and actively involved in violating plaintiff's Constitutional Rights.

100. That based on the foregoing the plaintiff was deprived of various rights, including, but not limited to, right to be free from the use of excessive force by the police; the right to be free from cruel and unusual punishment; not to have summary punishment imposed on him; to due process receive and to equal protection under law.

101. That, in addition to the foregoing, the defendant CITY inadequately trained, supervised and/or failed to adequately screen the individual defendants when they were hired and as they remained City employees.

102. That defendant CITY was deliberately indifferent to the fact that violation Constitutional and other Federal rights of individuals such as the plaintiff herein, was highly likely due to the aforementioned inadequately trained, supervised and/or inadequately screened individual defendants and/or the CITY policy stated by Mayor Adams and cited herein.

103. That the defendant CITY is liable to the plaintiff for the violation of his rights by acts of the individual defendants.

104. That the plaintiff claims compensatory damages based on the injuries caused by the defendants.

105. That the plaintiff claims punitive damages based on the foregoing.

106. The plaintiff seeks recovery of attorneys' fees and costs.

107. That by reason of the foregoing, plaintiff sustained damages and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT

108. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above, as if fully set forth again herein.

109. That as the result of the actions and conduct of the individual defendants, the plaintiff was in apprehension of imminent harmful, offensive and unwanted contact with his body.

110. That as a result of the defendants' assault, the plaintiff was caused to suffer serious and permanent personal injuries and emotional pain and suffering.

111. That by reason of the foregoing, plaintiff sustained damages and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY

112. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above, as if fully set forth again herein.

113. That individual defendants P.O. RODRIGUEZ or P.O. MORIARTY, and possibly others, touched and discharged their firearms ("shot") into the plaintiff in a harmful and offensive manner.

114. That said touching and shooting of the plaintiff was without privilege or consent from the plaintiff.

115. That as a result of said battery, the plaintiff was caused to suffer serious and permanent personal injuries.

116. That by reason of the foregoing, plaintiff sustained damages and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
NEGLIGENCE and CARELESSNESS AND RECKLESSNESS**

117. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above, as if fully set forth again herein.

118. That the defendants owed duties to the plaintiff.

119. That the defendants breached said duties due to their careless, negligent, grossly negligent and reckless conduct.

120. That the defendants were careless, negligent, grossly negligent and reckless in shooting at the plaintiff while he was in a moving vehicle, which contained no weapon(s) in violation of published NYPD policy and procedure and reasonable police practices; in shooting the plaintiff in the head as he sat unarmed in said motor vehicle; in failing to warn the plaintiff that NYPD officers were attempting to prevent his motor vehicle from moving; for failing to turn on the police warning lights in the unmarked vehicle in a timely, appropriate and reasonable manner; in failing to use loud speaker(s)

and/or sirens; in surprising the plaintiff with the aggressive movement of black unmarked police vehicles which initially had no warning lights illuminated; in unnecessarily escalating a traffic stop to excessively violent encounter due to negligent, careless and reckless conduct which resulted in the defendants' use of excessive, unreasonable and unjustified force against the plaintiff; in failing to properly identify themselves; in failing to wear known NYPD uniforms at the time of the incident complained of so they could be easily and properly identified; in failing to activate police worn body cameras in a reasonable, appropriate and timely manner; in using excessive, unreasonable and unnecessary violent force; in escalating what should have been, upon information and belief, a routine traffic stop, to a violent encounter by the use of unreasonable and inappropriate policing and excessive show of force, including the drawing and preparing for the discharge of firearms and, in failing to use and follow appropriate and reasonable police practices and procedures.

121. That said careless, negligent, grossly negligent and reckless conduct of the defendants was cause for the plaintiff suffering serious and permanent personal injuries.

122. That as a result of the defendants' careless, negligent, grossly negligent and reckless conduct, the plaintiff was caused to suffer serious and permanent personal injuries.

123. That by reason of the foregoing, plaintiff sustained damages and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

***AS AND FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING, SUPERVISION AND/OR RETENTION***

124. That the plaintiff repeats, reiterates and realleges each and every allegation set forth above, as if fully set forth again herein.

125. That defendant CITY selected, hired, trained, retained, assigned and supervised members of the NYPD.

126. That the defendant CITY was negligent and careless in selecting, hiring, training, assigning and/or supervising the individual defendants herein.

127. That defendant CITY's failure to properly train or supervise their subordinates amounted to deliberate indifference to the rights of those who come in contact with NYPD officers such as the individual defendants herein.

128. That due to said negligence the plaintiff was caused to suffer serious and permanent personal injuries

129. By reason of the foregoing, plaintiff sustained damages, both compensatory and punitive, and demands judgment in the sum that exceeds the jurisdictional limit of the Court which this action may otherwise have been brought.

130. That by reason of the foregoing, the plaintiff has suffered damages in an amount to be determined by a jury upon the trial of this action.

131. That the incident complained of occurred through no legal fault of the plaintiff.

132. That limitation of liability set forth in C.P.L.R. § 1601 do not apply to this action by reason of one or more of the exceptions listed in C.P.L.R. § 1602.

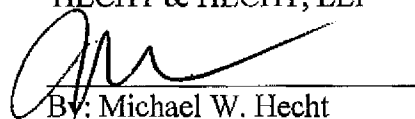
133. That the headings used herein are for the purpose of convenience only and are not intended to, and do not, limit any allegation(s) to any portion of the Verified Complaint in any manner whatsoever.

WHEREFORE, plaintiff demands that judgment be entered against the defendants, on the FIRST, SECOND, THIRD, FOURTH, FIFTH and SIXTH causes of action for compensatory damages, punitive damages, reasonable attorneys' fees, in amounts to be determined by a jury, together with costs and disbursements incurred herein and such other and further relief as deemed fair, just and proper.

Dated: September 1, 2022
Bronx, New York

Yours etc,

HECHT & HECHT, LLP



By: Michael W. Hecht
Attorneys for the Plaintiff
910 Grand Concourse, Suite 1C
Bronx, New York 10451
(718) 715-0500
(212) 226-2400

TO:

SYLVIA HINDS-RADIX
Corporation Counsel of The City Of New York
100 Church Street
New York, New York 10007-2601

P.O. WILL RODRIGUEZ
c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. LAUREN MORIARTY

c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. JOHN BATULE

c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

SGT. DANNY AGUILAR

c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451

P.O. EDWARD MURRAY

c/o New York City Police Department - 42nd Precinct
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P.O. JUAN PERALTA

c/o New York City Police Department - 42nd Precinct
830 Washington Ave.
Bronx, New York 10451



HON. SYLVIA HINDS-RADIX
Corporation Counsel

**THE CITY OF NEW YORK
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007**

KARI A. INDUSI
212-356-7141
kindusi@law.nyc.gov

July 15, 2022

Hecht and Hecht, LLP
910 Grand Concourse
Suite 1C
The Bronx, NY 10451

Re: The Claim of Luis Monsanto v City of New York
File No. 2022-037078

Mr. Hecht:

As discussed, the City is waiving the GML 50-h hearing of your client.

Please do not hesitate to contact the undersigned should you have any questions or concerns. I look forward to working with you on this matter.

Respectfully,

Kari A. Indusi

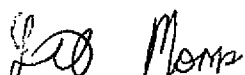
Kari A. Indusi
Assistant Corporation Counsel
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF BRONX)

LUIS MONSANTO, being duly sworn, deposes and says:

That he is the plaintiff in this action; that he has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; and that the same is true to his information, knowledge and belief, except as to those matters alleged upon information and belief which he believes to be true.



LUIS MONSANTO

Sworn to before me this
1st day of September 2022



Notary Public

MICHAEL W. HECHT
Notary Public, State of New York
No. 02HE5041161
Qualified in Westchester County
Commission Expires March 27, 2026

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

LUIS MONSANTO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER WILL RODRIGUEZ, Shield No. 19485, (Individually and in his official capacity) POLICE OFFICER LAUREN MORIARTY, Shield No. 14377 (Individually and in her official capacity), SARGENT DANNY AGUILAR, Shield No. 2496 (Individually and in his official capacity) POLICE OFFICER JOHN BATULE, Shield No. 25156 (Individually and in his official capacity), POLICE OFFICER EDWARD MURRAY, Shield No. 2512 (Individually and in his official capacity), POLICE OFFICER JUAN PERALTA, Shield No. 21062 (Individually and in his official capacity) and POLICE OFFICERS "JOHN/JANE DOE" 1-10 (Individually and in their official capacity) ("JOHN/JANE DOE" being fictitious names as the true names are presently unknown).

Defendants.

SUMMONS and VERIFIED COMPLAINT

HECHT & HECHT, LLP*Attorneys for Plaintiff(s)***LUIS MONSANTO**

910 Grand Concourse, Suite 1C
Bronx, New York 10451-2720
(718) 715-0500
(212) 226-2400

PLEASE TAKE NOTICE**NOTICE OF ENTRY**

() *that the within is a (certified) copy of a Judgment entered in the office of the Bronx County on February 26, 2021.*

NOTICE OF SETTLEMENT

() *that a proposed _____ of which the within is a true copy will be presented for settlement to _____ on the _____ day of _____, at 9:30 am*

Dated:*Bronx, NY*

Signature (Rule 130-1.1-a)

Michael W. Hecht